VoiceClub

Capslock Marketplaces Private Limited

PARTNER ENGAGEMENT LETTER

Freelancer Name : _____
Freelancer Identification : _____

Dear:_____

Capslock Marketplaces Private Limited, a company incorporated under the Companies Act, 2013, operating under its brand name "VoiceClub" and having its registered office at 555, 14th Main Rd, 7th Sector, HSR Layout, Bengaluru, Karnataka 560102, India ("Company") is pleased to offer you the role of a **Customer Engagement Partner** (hereinafter referred as "Partner") to the Company and avail your services with effect from and based on the terms and conditions mentioned hereinbelow.

THE TERMS OF THE CONSULTANCY SERVICES ARE AS FOLLOWS:

1. Appointment

The individual named above is hereby appointed as a Partner of the Company, with effect from_____. The terms of this Appointment shall remain in force unless terminated as per Clause 9. The Partner is required to register on the VoiceClub App, and all relevant Privacy Policy provisions will apply to the Partner from the commencement of this engagement.

2. Scope of Services

The Partner shall provide Voice Chatting /Real time Conversational Services to the Company's customers *exclusively* through the VoiceClub App and The Company:
a) Is not liable for risks associated with in-person meetings between the Partner and customers.
b) Will not be held responsible for the sharing of any personal or sensitive information by the Partner during such interactions.
The Partner shall comply with all guidelines, processes, and performance metrics as communicated by the Company.

3. Listener's Fee / Partner Fee

1. The Partner shall be entitled to a share of 20-50% of the revenue generated by them, based on their performance and tier level, as determined by the Company during the orientation or as revised by the Company from time to time. The Company shall provide transparent records of the revenue generated by the Partner for Voiceclub, and the revenue-sharing shall occur in accordance with the tiers defined by the company.
2. The Fee is inclusive of all compensation for services rendered, including any intellectual property created by the Partner during the term of this agreement.
3. The Partner is responsible for all applicable tax liabilities. The Company will withhold taxes as required, based on the nature of this agreement.
4. The Company may deduct any amounts owed by the Partner, including outstanding loans or damages to Company property, from the Fee.

4. Exclusivity, Non-Compete, and Non-Solicitation

1. The PARTNER shall offer services exclusively to the Company during the Term of this agreement.
2. During the Term and for a period of 3 (Three) months following the termination of this agreement, the PARTNER shall not engage in any competitive activity, including but not limited to employment, consultancy, or ownership in businesses that directly compete with the Company.
3. The PARTNER agrees not to solicit, induce, or encourage any employee, marketing agent, customer, or potential customer to terminate their relationship with the Company during the Term and for a period of 3 (Three) months following the termination of this agreement.
4. Any projects involving the Company and third parties shall remain the exclusive property of the Company, and the PARTNER shall not be entitled to any additional compensation beyond the agreed Consultancy Fee, unless explicitly agreed to by the Company.
5. The PARTNER acknowledges that the restrictions outlined in this section are reasonable and necessary to protect the Company's legitimate business interests and that such obligations do not cause undue hardship.
6. If any part of the restrictive covenants in this clause is deemed unenforceable by a court of competent jurisdiction, the parties agree to modify them to the extent permissible by law, to the maximum extent necessary to protect the Company's interests.

5. CONFIDENTIALITY

1. The PARTNER shall not, during the Term or at any time thereafter, disclose or make use of any Confidential Information of the Company for personal gain or for any purpose other than the Company's, and shall take all necessary steps to prevent others from doing so.
2. If the PARTNER is required by law to disclose any Confidential Information, they shall notify the Company in writing, allowing the Company to seek protection or confidential treatment, disclosing only what is legally required and ensuring that the information receives proper confidentiality.
3. Any materials, records, files, or documents related to the Company, prepared or handled by the PARTNER, shall remain the property of the Company and must be returned immediately upon termination of this Appointment Letter.
4. "Confidential Information" includes, without limitation, any technical or business data, trade secrets, customer lists, financial data, product specifications, and any other information considered confidential by the Company, whether disclosed in writing, orally, or electronically.
5. Both the PARTNER and the USER shall maintain confidentiality at all times and shall not disclose any personal details such as names, contact information, addresses, or social media profiles to each other. Neither the PARTNER shall solicit, nor the USER shall provide such information. In the event either party breaches this clause, the Company shall not be liable for any consequences arising therefrom and may take appropriate action, including termination of the user's access to the platform.
6. The confidentiality obligations shall survive the termination of this Appointment Letter.

6. INTELLECTUAL PROPERTY

1. The Company retains all rights, title, and interest in its Intellectual Property, which shall not be assigned or transferred to the PARTNER by this Appointment Letter.
2. Any Intellectual Property created by the PARTNER during the Term related to the Company’s business shall automatically vest in the Company. The PARTNER agrees to promptly disclose such work and irrevocably assigns their rights to the Company without additional compensation beyond the fees stated herein.
3. If applicable law prevents the assignment of rights, the PARTNER grants the Company an exclusive, irrevocable, worldwide, royalty-free license to use, exploit, and commercialize the work product, including the right to sublicense.
4. The PARTNER shall assist the Company by signing any documents and performing acts necessary to perfect the Company's rights. If the PARTNER fails to do so, the Company is irrevocably appointed as the PARTNER's agent to execute necessary actions.

5. The PARTNER waives all rights, including economic and moral rights, regarding any Intellectual Property created during the Term, agreeing not to assert any claim against the Company related to such work.
6. "Intellectual Property" includes copyrights, patents, trademarks, designs, trade secrets, know-how, and any other intellectual property rights (whether or not registered).
7. This clause shall survive the termination of this Appointment Letter.

7. REPRESENTATIONS AND WARRANTIES OF THE PARTNER

The PARTNER represents and warrants to the Company that, as of the date of execution of this Appointment Letter and throughout the Term:

1. The PARTNER has the necessary authority to execute this Appointment Letter and all related documents, and to fulfill its obligations under this agreement.
2. The PARTNER does not have any other existing agreements, relationships, or commitments that would conflict with the obligations under this Appointment Letter.
3. If applicable, the PARTNER has been amicably released by their previous employer.
4. There are no ongoing or pending claims, investigations, or proceedings against the PARTNER that could reasonably prevent them from fulfilling their obligations under this Appointment Letter.
5. There are no grounds for any claim, investigation, or proceeding that could reasonably be expected to prevent the PARTNER from fulfilling their obligations under this Appointment Letter.
6. The PARTNER has not been, nor will be:
   i. Sentenced to imprisonment for any period.
   ii. Convicted of any offense.
7. The PARTNER has made full and truthful disclosures to the Company regarding their qualifications, expertise, and competence in performing the obligations under this Appointment Letter. No material information has been concealed that could influence the Company's decision to engage the PARTNER.
8. The individual executing this Agreement is the same person identified during the onboarding process. Any misrepresentation, including but not limited to the use of an alias, another individual's identity, or falsification of personal information at any time during the term of this Agreement, shall constitute a breach of contract and fraudulent conduct. Such conduct shall result in the immediate termination of the PARTNER's relationship with the Company, and the Company reserves the right to pursue all available legal remedies, including civil and criminal actions, as permitted under applicable law. The PARTNER acknowledges that any violation of this provision will result in severe legal consequences.

8. COVENANTS OF THE PARTNER

The PARTNER covenants and agrees with the Company that:

1. All services to be provided by the PARTNER will be performed promptly, diligently, and at a level of proficiency consistent with the background and experience the PARTNER has represented. Time is of the essence in this Appointment Letter.
2. The PARTNER will not violate any laws, including intellectual property laws, or infringe upon the rights of any third parties or the Company.
3. The PARTNER will comply with all guidelines, instructions, and directions issued by the Company regarding the performance of their duties under this Appointment Letter and in delivering their partner services.
4. The PARTNER will inform the Company of any facts or circumstances that could cause undue hardship or significantly affect the performance of this Appointment Letter.
5. The PARTNER will not disclose any Confidential Information related to the Company or its affiliates and will not share any personal information of customers with others.
6. The PARTNER will not subcontract any part of this Appointment Letter to third parties without the Company's prior written consent. If subcontracting is approved, the PARTNER will remain directly liable for the actions or omissions of such third parties.
7. The PARTNER will not use any tools or works protected by copyright, including open-source software, without the Company's prior approval.
8. The PARTNER's social media activities will align with the social media guidelines set by the Company. The PARTNER will refrain from any activities that could spread rumors, defame the Company or its affiliates, or otherwise damage the Company's reputation.

9. TERMINATION

Termination by the Company

The Company may terminate this Appointment Letter with one (1) week's written notice or by compensating the Partner with payment equivalent to the Partner's fee for the notice period.

a. All outstanding obligations owed to the Partner up to the termination date will be paid promptly, subject to applicable deductions.

b. The Partner must return all Company materials, documents, and confidential information immediately upon termination.

Termination by the Partner

The Partner may terminate this Agreement with one (1) week's written notice.

a. The Partner must fulfill any accrued obligations until the termination date.

b. The Partner shall return any Company property promptly and ensure no disruption to ongoing services.

Termination for Cause
The Company may terminate immediately without notice if the Partner breaches any material term, including:
a. **Breach of Confidentiality** – Unauthorized disclosure of Confidential Information (Clause 5).
b. **Non-Compliance** – Failure to comply with legal requirements or Company guidelines.
c. **Misrepresentation** – Providing false information regarding identity, qualifications, or abilities.
d. **Failure to Perform** – Significant failure to meet service standards or deadlines.
e. **Engaging in Competitive Activities** – Competing with the Company or violating non-compete terms (Clause 8).
f. **Defamation or Harmful Conduct** – Damaging the Company's reputation or engaging in harmful social media activity, including but not limited to, posting defamatory statements, spreading negative rumors, or publicly disparaging the Company on any platform (including social media, blogs, or any public or private forums).
g. **Violation of Platform Intent** – Any activity that goes against the true intended scope, usage policy, or intention of the platform. In such cases, the Company is not obligated to provide any justification or accommodate any requests from the Partner. This includes, but is not limited to, actions taken via social media, emails, public statements, or any other communication methods that contravene the agreed-upon terms or the purpose of the platform.

Consequences of Immediate Termination for Cause
In case of immediate termination, the Company may:
a. **Withhold Payments** – Withhold due payments until the issue is resolved.
b. **Legal Actions** – Pursue legal remedies to recover damages.
c. **Forfeit Future Payments** – Forfeit any future payments due to the Partner.

Obligations Post-Termination
Upon termination, the Partner shall cease using Company intellectual property, customer data, and confidential information.
a. The Partner must assist in transitioning services to prevent disruption.
b. Confidentiality, non-solicitation, and non-compete obligations will survive termination.
c. Breaches of post-termination obligations may lead to legal consequences, including claims for damages.

Notice and Acknowledgment
The Partner shall not make public statements regarding the termination without prior written consent from the Company.

10. FORCE MAJEURE

Neither party shall be held liable for failure to fulfill obligations under this Appointment Letter if such failure is caused by circumstances beyond their reasonable control, including natural disasters, acts of war, government actions, or other unforeseen events ("Force Majeure"). The affected party shall promptly notify the other in writing of the Force Majeure event and resume performance as soon as practicable.

11. CONSEQUENCES OF TERMINATION

1. Within 10 (Ten) days of termination, the PARTNER shall:

a. Hand over all Intellectual Property created under Clause 7 of this Appointment Letter, if such Intellectual Property has not already been provided to the Company. If the Intellectual Property is incomplete or defective, the PARTNER must provide details of the necessary actions to complete or rectify the work.

b. Return all property of the Company, including Confidential Information provided during the Term, and destroy all copies (in both physical and electronic form) to the satisfaction of the Company.

2. Upon termination, the legal obligations, rights, and duties arising from this Appointment Letter shall cease, except for those obligations that have accrued prior to termination and those expressly stated to survive in this Appointment Letter.

12. INDEMNITY

The PARTNER shall indemnify, defend, and hold harmless the Company, its officers, directors, employees, agents, and authorized representatives (each, an "Indemnified Party") to the fullest extent permitted by applicable law, against any losses, damages, penalties, fines, expenses, and interest arising from any claims, suits, proceedings, or judgments, including legal fees, disbursements, and other charges of counsel, in connection with or arising out of:

a) Breach of any warranties, covenants, undertakings, or terms of this Appointment Letter by the PARTNER;

b) Any actions, causes of action, or suits arising from the PARTNER's acts or omissions, initiated by a third party in which the Indemnified Party is also named;

c) Any fraud, gross negligence, or misconduct by the PARTNER in relation to this Appointment Letter.

13. LIMITATION OF LIABILITY -

The Company shall not be liable for any loss of profit or any indirect or consequential losses or damages arising under or in connection with this Appointment Letter, whether in contract, tort (including negligence), breach of statutory duty, or otherwise. Furthermore, the Company shall not be liable for any acts or omissions of the PARTNER in relation to the partner services provided. The Company's total liability to the PARTNER for direct and actual losses arising under or in connection with this Appointment Letter shall not exceed an amount equal to 1 (One) month's Listener's Fee payable to the PARTNER under this Appointment Letter.

14. GOVERNING LAW AND DISPUTE RESOLUTION

1. This Appointment Letter and all rights and obligations hereunder shall be governed by and construed in accordance with the laws of India.
2. Subject to Clause 13.1, any dispute, controversy, or claim between the Parties arising from or in connection with this Appointment Letter, including any questions regarding its existence, validity, or termination, as well as any disputes related to non-contractual obligations arising in connection with this Appointment Letter ("Dispute"), shall be referred to and finally resolved by arbitration under the Arbitration and Conciliation Act, 1996 (as amended from time to time), along with the rules thereunder, which are incorporated by reference into this Clause. The seat and venue of arbitration shall be Bangalore, India. The arbitration tribunal shall consist of 1 (one) arbitrator, appointed by the Parties. The language of the arbitration shall be English. Any arbitral award shall be final and binding on the Parties. Nothing in this Appointment Letter (or, unless otherwise provided, any document entered into in connection with it) shall prevent a Party from applying to the courts of any other country for injunctive or interim relief.
3. If arbitration does not resolve a dispute, the matter may be escalated to mediation. Both parties shall mutually agree on a neutral mediator within 15 days. If mediation also fails, parties may approach courts as per the jurisdiction clause.

15. MISCELLANEOUS

1. **Relationship of the Parties**: This Appointment Letter is entered into on a principal-to-principal basis and does not create a partnership, joint venture, or employer-employee relationship between the Parties. Nothing in this Appointment Letter authorizes either Party to enter into agreements or make representations or warranties on behalf of the other Party.
2. **Successors**: The Company may assign its rights under this Appointment Letter to any of its successors in business, by merger or otherwise, and may assign or encumber this Appointment Letter and its rights hereunder as security for the Company's indebtedness. The rights of the PARTNER under this Appointment Letter shall not be assigned or encumbered, either voluntarily or involuntarily, during its lifetime, and any such attempted assignment shall be void ab initio.
3. **Third Parties**: Except for the rights granted to the Company hereunder, and except as expressly stated or referred to herein, nothing in this Appointment Letter, whether expressed or implied, is intended or shall be construed to confer any rights or remedies upon any person other than the Parties and their successors and permitted assigns.
4. **Enforcement**: The provisions of this Appointment Letter are divisible, and if any provision or part thereof is declared invalid or unenforceable by a court of competent jurisdiction, the validity and enforceability of the remaining provisions shall not be affected.

5. **Amendment**: This Appointment Letter may only be amended or modified by a written instrument executed by both the Company and the PARTNER. Any attempted amendment or modification without such written instrument shall be null and void ab initio.
6. **Data Protection Compliance:**
   The Partner shall adhere to applicable data protection laws, including but not limited to the Information Technology Act, 2000, and relevant data privacy regulations.
   The Partner must ensure the security and confidentiality of customer data and promptly report any data breaches to the Company.
7. **Publicity**: The PARTNER agrees not to disclose the existence or contents of this Appointment Letter to any third party without the prior written consent of the Company, except:
   i. To advisors, attorneys, or auditors who have a need to know (and are bound by confidentiality obligations).
   ii. As required by law or court order.
   iii. As necessary to enforce this Appointment Letter.
8. **Retention Of Records :**
   The Partner consents that the Company may maintain and securely store all records related to the services rendered under this Appointment Letter. These records shall include, but are not limited to, payment receipts, service logs, communication records, and any other documents specified by the Partner.
   Such records must be retained for a minimum period of two (2) years post-termination or as required by applicable law, whichever is longer.
   The Company further agrees to make these records available to the Partner upon request for audit or legal purposes within the retention period
9. **Intellectual Property Warranty**
   The Partner warrants that all work product delivered under this Appointment Letter:
   * Is original and does not infringe upon the intellectual property rights of any third party.
   * Shall remain free from any claims of ownership by third parties.
10. **Survival Clause:** Notwithstanding anything to the contrary in this Appointment Letter, the following provisions shall survive the termination of this agreement and remain in full force and effect: Clause 8 (Covenants of the Partner), Clause 4 (Exclusivity, Non-Compete, and Non-Solicitation), Clause 5 (Confidentiality), Clause 11 (Indemnity), Clause 12 (Limitation of Liability), Clause 13 (Governing Law and Dispute Resolution), Clause 14 (Miscellaneous), and any other clauses or sub-clauses explicitly stated in this Appointment Letter to survive termination. For clarity, any obligations or liabilities that have accrued prior to termination shall also remain enforceable.
11. **Grievance Redressal**: In case the PARTNER wishes to report any abusive call, they may contact the Company's help desk at help@voiceclub.app.

12. **Notice**: Notices under this Appointment Letter shall be in writing and delivered to the addresses stated above or to such other address as the receiving Party has designated, in accordance with the notice provisions, via registered post or similar means.
13. **No Waiver**: No waiver by either Party of any breach or non-compliance with any provision of this Appointment Letter shall be deemed a waiver of any similar or dissimilar provisions at any time.
14. **Headings**: The headings in this Appointment Letter are for reference only and shall not affect the meaning or interpretation of any provision.

IN WITNESS WHEREOF, the Parties have executed this Appointment Letter in one or more counterparts, each of which shall be deemed one and the same instrument, as of the day and year first written above.

On Behalf of the Company	**On behalf of the Partner**
Name : Azhar Rabbani **Designation :** Director **Signature** 	**Name :**_____ **Designation :** Freelancer / Customer Engagement Partner **Signature :** ***Date :***_____ ***Place :***_____